

Separate Statement.

California Rules of Court rule 3.1345(c) sets forth the requirements for the contents of a separate statement. Plaintiff's separate statement does not conform.

Based on the procedural defects, the Court DENIES the motion.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504118	BILLEH VS HADDAD	MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

Tentative Ruling: The Court GRANTS Plaintiff's unopposed Motion for Leave to File First Amended Complaint. Plaintiff shall file the First Amended Complaint within 14 days of this Order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600380	BARTELS VS COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: The Court DENIES Defendant's Requests for Judicial Notice. The Court OVERRULES the demurrer as to the 1st, 3rd, 4th and 5th causes of action. The Court SUSTAINS, without leave to amend, as to the 2nd and 6th causes of action.

"A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (Committee For Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42.) The burden is on the plaintiff to sufficiently plead facts that would support an equitable tolling, which the FAC fails to do. (Long v. Forty Niners Football Co., LLC (2019) 33 Cal.App.5th 550, 555.)

Here, the facts in this case began 30 years ago when Archer Road's elevation was changed, the FAC sets forth facts that could support a finding of equitable tolling based on ongoing promises by County until its counsel's letter of May 24, 2024, advised that County would no longer honor the prior promises and would not provide for public access. Accordingly, **the FAC is not barred on the grounds of statute of limitations.**

1st Cause of Action for Inverse Condemnation:

To state a claim for inverse condemnation, a plaintiff must allege that (1) a public entity, (2) has taken or damaged their property, (3) for a public use. (Simple Avo

Paradis Ranch, LLC v. Southern California Edison Co. (2024) 102 Cal.App.5th 281, 289.) Here, the FAC alleges that in elevating Archer Road by fifteen feet, County cut off public access to their property and did not provide an alternative public access to the property. **Accordingly, the FAC sufficiently states an inverse condemnation claim and the Court OVERRULES the demurrer to the 1st cause of action.**

2nd Cause of Action for Violation of Government Code §815.6:

Government Code Section 815.6 provides that when a public entity has a mandatory duty, it may be liable for violating that duty if it does not exercise reasonable care in its discharge. Here, the FAC alleges that Defendants owed Plaintiffs a duty, arising from the CSA 128 formation and assessment enactments to provide the road access for which the assessments were levied against and collected from Plaintiffs. to set forth any statutory mandatory duty that County is alleged to have failed to exercise reasonable care in its discharge.

To state a cause of action under section 815.6, a mandatory duty must exist either pursuant to statute or constitutions provision, which duty must be explicitly. (See In re Dohner (2022) 79 Cal.App.5th 590, 597.) The FAC fails to cite any statute or constitutional provision that applies. **Accordingly, the Court SUSTAINS the demurrer to the 2nd cause of action without leave to amend.**

3rd Cause of Action for Breach of Implied Contract:

“A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct.” (Yari v. Producers Guild of America, Inc. (2008) 161 Cal.App.4th 172, 182; Civ. Code, §1621.) The elements for a breach of contract claim are: (1) contract; (2) plaintiff's performance; (3) breach; and (4) damages. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.) A public agency may be found liable in appropriate circumstances on the basis of either an implied-in-fact contract or the doctrine of promissory estoppel. (Air Quality Products, Inc. v. State of California (1979) 96 Cal.App.3d 340, 349.) “However, no contractual obligation may be enforced against a public agency unless it appears the agency was authorized by the Constitution or statute to incur the obligation; a contract entered into by a governmental entity without the requisite constitutional or statutory authority is void and unenforceable. [Citations.]” (Air Quality Products, Inc. v. State of California (1979) 96 Cal.App.3d 340, 349.)

The FAC asserts that County had and exercised statutory authority to acquire property and to construct and improve roads and exercised that authority here when its CSA Administrator authorized the Archer Road extension for Plaintiffs' access, acquired the Sass road dedication, and its BoS formally approved and funded the Emelita Street road construction project. Further, the FAC alleges that Plaintiffs complied with their part of the contract by conveying the land. **The FAC sufficiently alleges facts**

regarding a tolling of the statute of limitations, such that the Court OVERRULES the demurrer to the 3rd cause of action.

4th Cause of Action for Promissory Estoppel:

The elements of promissory estoppel are: “(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) the reliance must be reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.” (Laks v. Coast Fed. Sav. & Loan Ass’n (1976) 60 Cal.App.3d 885, 890.) To be binding, a promise must be “definite enough that a court can determine the scope of the duty and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages.” (Garcia v. World Savs. Bank, FSB (2010) 183 Cal.App.4th 1031, 1045.)

This is an alternative theory to the breach of the implied contract. A public agency may be found liable in appropriate circumstances on the basis of either an implied-in-fact contract or the doctrine of promissory estoppel. (Air Quality Products, Inc. v. State of California (1979) 96 Cal.App.3d 340, 349.) **For the same reasons that the Court overrules the implied contract cause of action, the Court OVERRULES the 4th cause of action for promissory estoppel.**

5th Cause of Action for Declaratory Relief:

Declaratory relief is authorized pursuant to C.C.P. §1060-1062.5. The purpose of declaratory relief is to eliminate uncertainties and controversies that may result in future litigation. (Marina Development Co. v. County of Los Angeles (1984) 155 Cal.App.3d 435, 443.) An action for declaratory relief is authorized only when an actual controversy exists. (C.C.P. §1060.) Declaratory relief has two elements a party must satisfy: “ (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party’s] rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal App. 4th 872, 909.) “[T]he remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal App. 4th 872, 909.) “It is the general rule that, if a complaint shows the existence of a present controversy between the parties of the nature contemplated by section 1060 of the Code of Civil Procedure, it is improper to sustain a general demurrer on a theory that assumes any declaration would necessarily be unfavorable to plaintiff.” (Safeway Stores, Inc. v. Royal Indem. Co. (1971) 21 Cal.App.3d 44, 47.)

However, “[w]hile section 1060’s language ‘appears to allow for an extremely broad scope of an action for declaratory relief’...In the context of a demurrer, the court will evaluate ‘whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties....Section 1060 must be read together with section 1061.’ (Cummins Corporation v. United States Fidelity & Guaranty Company (2016) 246 Cal. App. 4th 484, 489.) CCP §1061 provides that “[t]he court may

refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.”

The Complaint sufficiently states a declaratory relief cause of action as there is a current controversy whether the Bartels have the right to access Archer Road and whether county is obligated to ensure the Bartels have access to their property.

Accordingly, the Court OVERRULES the demurrer to the 5th cause of action.

6th Cause of Action for Unjust Enrichment: A public entity cannot be held liable on an implied-in-law or quasi-contract theory. (*Pasadena Live v. City of Pasadena* (2004) 114 Cal.App.4th 1089, 1094.) **Accordingly, the Court SUSTAINS the demurrer as to the sixth cause of action without leave to amend.**

4.

CASE #	CASE NAME	HEARING NAME
CVRI2603343	KNEZ VS RIVERSIDE MEDICAL CLINIC, INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling: The Court SUSTAINS the demurrer to the second cause of action with leave to amend. The Court GRANTS the motion to strike.

Intentional Infliction of Emotional Distress:

Intentional infliction of emotional distress requires: (1) outrageous conduct, (2) intent to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional distress, and (4) accrual and proximate causation. (*Stoiber v. Honey* (1980) 101 Cal.App.3d 903, 921.) Behavior is outrageous if it exceeds all bounds typically tolerated by decent society. (*Id.*) There is no liability under a claim for intentional infliction of emotional distress for insults, threats, annoyances, indignities, petty oppressions, or other trivial behavior. (*Pilotrik v. Melhaus* (2012) 208 Cal.App.4th 1590, 1610.)

This claim against Clinic is based on it permitting Fernandez-Bell to work in the ENT department and treat, proscribe, and diagnoses patients without any guidance or oversight by a licensed doctor to reduce costs. (Complaint, ¶ 23.) This cause of action is asserted against Fernandez-Bell based on her not being qualified to treat patients with complicated otolaryngology issues, like Plaintiff's. (*Id.* at ¶ 24.) The allegations against Kim are based on Kim knowingly allowing Fernandez-Bell to treat and diagnoses patients in the ENT department and providing no guidance and oversight to Fernandez-Bell. (*Id.* at ¶ 25.) This does not appear to constitute conduct that exceeds all bounds typically tolerated by decent society. (*Stoiber, supra*, 101 Cal.App.3d at 921.) It appears to fit within the perimeters of professional negligence. Negligence is failure to meet a standard of care. As such, the demurrer should be sustained as to this cause of action with leave to amend. Plaintiff argues that whether conduct constitutes outrageous conduct should not be determined on demurrer. However, such a determination is routinely made by courts – *Bock v. Hansen* (2014) 225 Cal.App.4th 215, 235; *Mintz v.*